



Non-Disclosure and Confidentiality Agreement (NDA)

Employee Information

- Full Name: _____
- Employee ID: _____
- Email Address: _____
- Phone Number: _____

1. Purpose and Scope

This Non-Disclosure Agreement ("NDA") is entered into between the employee and the company as a condition of employment or engagement. It applies to all employees, contractors, consultants, interns, or anyone with access to company or customer confidential information.

This agreement is effective from the date of signature and continues to remain in force both during the term of employment and after its termination, regardless of the reason for termination.

2. Definition of Confidential Information

For the purpose of this NDA, "Confidential Information" includes, but is not limited to:

- Customer-sensitive data and personal information
- Business strategies, financial records, budgets, and business plans
- Technical information including source code, proprietary software, and systems
- Access credentials, tools, documents, and assets shared by customers
- Internal communication, employee information, and HR data

Exceptions to confidentiality include:

- Information that is publicly available
- Data lawfully obtained through external sources
- Information released with explicit written consent from authorized personnel

3. Employee Obligations

As part of your employment obligations, you agree to:

- Maintain the confidentiality of all sensitive information
- Use such information solely for official business purposes
- Refrain from discussing sensitive topics in public or on unsecured devices
- Avoid sending or storing sensitive data on personal email or cloud storage services unless explicitly approved
- Immediately report any actual or suspected data breaches or security incidents to HR or the Management team





4. Information Security and Cybersecurity

You agree to follow all information security and cybersecurity guidelines issued by the company. This includes:

- Using strong passwords and locking devices when unattended
- Encrypting files and data, especially when shared
- Avoiding the use of public or unsecured Wi-Fi to access company systems
- Disposing of printed and digital confidential data using secure means such as shredding or secure deletion tools
- Not copying or transferring any data via USB or external storage devices unless explicitly authorized
- Ensuring antivirus software is up-to-date and active
- Not disabling firewalls, VPNs, or any other system-level security controls

5. Non-Competition and Non-Solicitation

During the period of employment and for a 5 years term following the termination, employees agree not to:

- Engage in business activities that directly compete with the company
- Solicit clients, customers, or employees for personal or third-party gain
- Participate in actions that may cause financial or reputational harm to the company

6. Management of Customer Assets and Infrastructure

Employees must:

- Use all customer-provided tools, data, and access credentials solely for authorized business functions
- Refrain from sharing or misusing customer assets and infrastructure
- Return or securely delete all customer-owned data and materials upon employment termination or upon request

7. Background Verification and Disclosure

You confirm that:

- All information provided regarding your education, address, and past employment is accurate and up to date
- You have no pending criminal cases or legal compliance issues
- You will cooperate with the company for any background or compliance checks, when required

8. Compliance with Company Policies

Employees are required to comply with the following policies:

- Code of Conduct
- Information Security Policy
- Prevention of Sexual Harassment (POSH) Policy
- Any other official policies, manuals, or compliance requirements as updated from time to time





9. Consequences of Breach

Violation of this NDA or company policies may result in:

- Formal disciplinary action, including termination of employment
- Police reporting and legal investigations
- Civil and/or criminal liabilities
- The employee shall be liable to compensate the company for any direct or indirect losses, including a penalty of up to INR 1,00,00,000 (One Crore Rupees) or the actual cost of legal and recovery expenses incurred by the company, whichever is higher.
- The company reserves the right to seek injunctive relief, claim damages, or initiate civil/criminal proceedings in any competent court of law

10. Acknowledgment and Agreement

By signing this NDA, the undersigned employee acknowledges:

- That they have read and understood the terms of this agreement
- That they agree to comply with all obligations, responsibilities, and limitations
- That they will provide accurate personal and professional information as required

- Employee Name: _____

- Employee ID: _____

- Email ID: _____

- Phone Number: _____

- Signature: _____

- Date: _____

*This document is the property of the company and is to be returned upon request. *

